

NHOM Unit Modification Policy

This is a review draft for discussion only. It has not been adopted by the Board.

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Authority and Change Notes

Association of Apartment Owners Na Hale O Makena

How to read this Policy. Each requirement carries its authority in brackets — the document and section that imposes it, so you can look it up. Where a citation is marked *(weak/supplementary)* it supports the rule but is not the operative grant. Superscript note numbers point to **Authority and Change Notes** at the end, which record the analysis behind a provision and every change made to the original 2020 policy. Nothing in the notes creates a requirement; the requirements are in the body.

1 General

This Unit Modification Policy contains the rules for modifications, alterations, additions and renovations in units and limited common elements at Na Hale O Makena. It is supplementary to the Declaration, the Bylaws and the House Rules. *[Bylaws §6.4; §6.1(e); Declaration §1.21 (weak/supplementary)]*^{N2} It is made under HRS §514B-140 and Bylaws §6.4.^{N3}

Its purpose is to protect the structural integrity of the buildings and common elements, to ensure work is properly conducted, to protect occupants from annoyance and nuisance, and to protect the reputation and desirability of Na Hale O Makena. *[Declaration §8(b)]*

All Owners, Tenants, and their contractors, employees, licensees, agents, representatives and invitees must comply with this Policy. *[Bylaws §2.3]*

Regardless of who the owner engages to perform the work, the owner remains responsible for compliance with all legal requirements, the Declaration, the Bylaws and the House Rules, and is responsible to the Association for all costs of review, approval, investigation and repair arising from the work or from damage to common areas or other apartments, and for restoration of any modification to common walls or load-bearing walls. *[Bylaws §2.3; §8.2; Declaration §5.4]*

An owner who engages a contractor is responsible for ensuring that no mechanic's or materialman's lien arising from that work attaches to the property, and for discharging or bonding off any lien that does. *[Bylaws §6.1(k)]*^{N4}

Before you start. Talk to the Resident Manager before any modification work begins. Not every job needs Board approval and some need nothing at all, but the requirements differ by the kind of work — Section 2-Approvals Required for the Work, sets out the categories, and Exhibit A lists common jobs. The Resident Manager provides Modification Request forms and the Board-approved specifications.^{N5}

2 Approvals Required for the Work

This Section is the governing schedule: it sets out the categories of modification and the approval each type of work requires. **Exhibit A** is a companion reference that lists common, everyday modifications as examples, showing which category — and what approval — applies to each. Exhibit A illustrates these rules; it does not replace them. If a job is not listed in Exhibit A, or you are unsure which category it falls in, the categories in this Section govern — ask the Resident Manager before you start.

Category	What falls here	What you must do	Authority
1. Prohibited	Work that may jeopardize the soundness or safety of the property, reduce its value, or impair any easement, as reasonably determined by the Board	Cannot be performed at all	[HRS §514B-140(a); Bylaws §8.6; Declaration §8(b)]
2. Owner vote and Board approval	Material additions or alterations; work that changes an apartment boundary; work converting apartment space into common or limited common element, or the reverse	Submit the Modification Request Application with plans and specifications. Written consent of 67% of the unit owners , the consent of every owner directly affected, and Board approval. Boundary and conversion work also requires a recorded Declaration amendment and mortgagee approval	[HRS §514B-140(b); Declaration §19(d), §16.4(f), (g); Bylaws §8.4(d)] ^{N6}
3. Board approval	Additions or alterations to a unit or the common elements that affect structure, shared building systems, or the outside appearance of the project — including: flooring above the ground floor; anything that alters the outside appearance or is visible from outside; work on interior load-bearing walls; work on pipes, wires, ducts or conduits serving more than one apartment; and significant changes to in-wall plumbing or electrical. Excludes plumbing or electrical work for minor relocations of appliances, cabinetry, furniture, and light fixtures that do not affect the point of tie-in with Association infrastructure	Submit the Modification Request Application with plans and specifications and obtain written Board approval before starting . Approval shall not be unreasonably withheld	[HRS §514B-140(c); Bylaws §8.3(a)–(d), §8.3(g), §8.4(b); Declaration §4.3(f), §5.1(c), §5.1(d), §8(c)] ^{N6}
4. Resident Manager review — no Board approval	Installing, removing or rearranging non-structural partitions	Submit a Modification Request to the Resident Manager, with a plan drawing or sketch, at least 30 days before work begins . The Resident Manager confirms that the work is genuinely	[Bylaws §8.3(g)]

Category	What falls here	What you must do	Authority
		nonstructural and meets the Bylaws guidelines; work that is structural, or that affects restricted or shared elements, is escalated to Board approval (Category 3). No Board approval or owner consent is otherwise required	
5. No submission required	Interior painting not visible from outside; ground-floor flooring; tiling and cabinets that do not structurally change plumbing, electrical or other common elements; like-for-like fixture and appliance replacement	Nothing — but licensed-trade and permit rules in Section 4-Contractors, still apply	<i>[Bylaws §8.3(g); §2.2 carve-out for cabinets and tiling]</i>

This rule applies to every category above. The owner or the owner's contractor must notify the Resident Manager **at least 48 hours before the contractor first arrives on site to begin work** — including demolition, or delivery of materials or equipment to the unit — stating the start date, the expected duration, and the contractor who will be on site.

2.1 Flooring above the ground floor

Owners of apartments above the ground floor shall not remove or replace the carpeting and padding originally installed by the Developer except where replaced with carpeting and padding first approved by the Board, of a quality equal to or better than that originally installed. Flooring changes in upper-floor units require Board approval even where the work is otherwise cosmetic. *[Bylaws §8.3(g), as amended by the First Amendment recorded June 26, 2001, Doc. 2001-096485]*^{N7}

2.2 Modifications for persons with disabilities

The Association will permit an owner with a disability to make reasonable modifications at the owner's expense, including the cost of any required bonds. The request must be in writing and is **deemed granted if not denied in writing within forty-five (45) days**. Where the modification affects the exterior or the exterior appearance of the Project, Board approval is required and the cost is the applicant's. This obligation runs in parallel with the federal Fair Housing Act and HRS ch. 515 and is not displaced by any other provision of this Policy. *[Bylaws §8.5; Declaration §9 (weak/supplementary); FHA; HRS ch. 515]*^{N8}

2.3 Solar energy devices

Installation of a solar energy device by an owner is allowed only upon the prior written consent of the Board, under HRS §514B-140(c)(1). The Board may condition its written consent to reduce or mitigate adverse visual or other impacts to the common elements and other apartments; because a visible installation may be a material alteration of the common elements, the Board may also require the owner approval provided for in HRS §514B-140(b) where applicable. A solar energy device is a modification subject to this Policy. The Bylaws §8.3(e) prohibition on exterior solar panels is likely preempted by HRS

§514B-140(c)(1) and is to be addressed in the Association's pending Bylaws amendment work rather than relied on. *[Bylaws §8.3(e); HRS §514B-140(b), (c)(1)]*^{N9}

3 Approval Process

3.1 Application

For Category 2 and Category 3 modifications — those requiring Board approval — owners must submit the Modification Request Application ("Application") to the Board. (Category 4 requires only a notification and sketch to the Resident Manager under Section 2-Approvals Required for the Work; Category 5 requires nothing.) The Application is issued separately as a fillable PDF — see Section 13-Modification Request Application. The Application shall also include at least all of the following:

- a. A design plan with detailed drawings, photographs and/or specifications and all measurements for the proposed Work, proportionate to the work. Stamped engineering and/or architectural drawings are required only where the Work is structural, affects load-bearing walls, or affects Project systems, or where the Board reasonably requires them. *[Bylaws §8.3(g); Board rule under §6.4, §6.1(e)]*^{N10}
- b. Copies of any required permits — see Section 4.2-Permits.
- c. The name of a Hawaii licensed and insured contractor performing the work (company name and license number), and contact information for the contractor and subcontractors.
- d. Evidence of the contractor's current liability insurance and workers' compensation insurance for all installers and sub-contractors performing the work, in amounts set by the Board. The Board may require that the Association be named as an additional insured on the contractor's liability policy.
- e. If required by the Board, a Performance and Completion Bond equal to or greater than the total cost of the work. Items (d) and (e) apply to Category 2 and Category 3 modifications only. *[Items (d) and (e): Board rule under Bylaws §6.4, §6.1(e)]*^{N11}

The Board may require further information it reasonably believes necessary to determine whether the proposed Work meets the requirements of this Policy. Requests for further information must be reasonably related to that determination. *[HRS §514B-140(b), (c)]*^{N12}

If there have been any design layout modifications from the original "as built" plans and specifications submitted to the Board, the owner must immediately provide a copy of the new layout to the Resident Manager. Design modifications include, but are not limited to, the removal or relocation of any walls, doorways, appliances or plumbing.

3.2 Costs

The owner shall pay for all expenses which have been or are likely to be incurred in connection with the application review and Work inspection. Expenses may include any professional, including but not limited to an architect or structural engineer, that is necessary for the Work. *[Bylaws §8.3(a)]* A reasonable deposit towards these fees, subject to change, may be required by the Board. The Board may hire a consultant, at the expense of the owner, for application review, Work inspection and damage review incidents to report to the Board.

3.3 Approval & Inspection

The Board shall approve the application if it meets the requirements set forth herein, and if in the Board's reasonable opinion the proposed Work has been designed and specified to reduce or mitigate adverse visual or other impacts to common elements and other units. *[HRS §514B-140(b), (c)]*^{N14}

All work is subject to inspection by the Resident Manager, Board and/or the Board's designated representative. *[Bylaws §10.1; Declaration §6(c)]*

The Resident Manager may **inspect the status of the work at any time during the construction hours stated in Section 5-Working Hours** to confirm that the work in progress matches the scope the Board approved and that this Policy is being observed. Access for that purpose shall be arranged with the owner or the owner's on-island representative and, except in an emergency, at a time reasonably convenient to the occupant. *[Bylaws §10.1; Declaration §6(c)]*^{N15}

The Board reserves the right to stop or delay any work which has not been approved or deviates from the approved scope. If at any time during the course of work the Contractor is ordered to stop work by the Board, all work will cease immediately and will not resume without specific written authorization from the Board allowing resumption of work. *[Bylaws §6.5(a), (b)]*^{N16}

3.4 Indemnification

As a condition of Board approval, the owner shall agree in writing to indemnify, defend and hold harmless the Association, the Board, the managing agent and the Resident Manager against any claim, action or liability, at law or in equity, arising out of or relating to the approved modification Work, including work performed by the owner's contractors, agents or invitees. *[Bylaws §2.3, §8.2; modeled on the Bylaws' service-animal indemnification clause]*^{N26}

3.5 Termite and Powderpost Beetle Treatment

Any untreated wood, millwork, cabinetry, or wood-framed furnishing brought into the Project as part of an approved modification must be treated for termites and powderpost beetles before installation, at the owner's sole cost. The owner must provide the Resident Manager with documentation of treatment from a licensed pest-control operator before the work is inspected under Section 3.3-Approval & Inspection. The Association's buildings share wood framing; untreated material introduced into one apartment places other apartments at risk. *[Board rule under Bylaws §6.4, §6.1(e); Resident Manager recommendation]*^{N28}

4 Contractors

4.1 Licensed Contractor Required

Any work exceeding \$1,500, or any work for which a county building permit is required, must be performed by a Hawaii licensed contractor. *[HRS §444-9; §444-2(4); House Rules §10.2 (weak/supplementary)]*^{N17}

All electrical and plumbing work must be performed by contractors licensed for that work in Hawaii.

The owner shall provide the contractor's license number to the Resident Manager for any modification requiring a licensed contractor. **Verifying the contractor's license is the owner's responsibility.** Owners may verify a contractor's license at the State of Hawaii Department of Commerce and Consumer Affairs Professional & Vocational Licensing search: <https://mypvl.dcca.hawaii.gov/public-license-search/>^{N18}

4.2 Permits

Obtaining any required permit — and completing any inspection required under it — is the responsibility of the licensed contractor performing the permitted work, not the owner. The owner shall verify with the contractor which components of the Work require a county or Special Management Area (SMA) permit, and shall verify that the contractor has obtained the required permit(s) before that work begins. A copy of each permit is required only for Category 2 and Category 3 modifications, provided to the Resident Manager. The Association does not administer, interpret, or enforce the building code.

4.3 Contractor Conduct

1. The contractor must abide by the Declaration, Bylaws, House Rules and this Policy at all times. It is the owner's responsibility to advise the contractor of the Association's governing documents. Owners shall provide a copy of this Policy and the House Rules of the Association to all persons performing work at or in the Unit.
2. There will not be any work performed or anything stored in the walkways or common areas at any time. *[House Rules §6.3; §7.7]*
3. Contractors or workers may not leave pets in work trucks in the parking lot or have them present on the job site. *[House Rules §8.1 (weak/supplementary)]*^{N19}
4. Contractors must wear shirts, appropriate footwear and exercise professional decorum.
5. Contractors must register with the Resident Manager. Contractors will be issued a temporary parking permit, which must be displayed on the driver's side of the front dashboard of the vehicle. Contractors must park in spaces designated by the Resident Manager, unless granted special permission by the Resident Manager. *[House Rules §7.4; Bylaws §8.7(f)(iv)]*
6. Contractors shall not use the Association's equipment, or the dumpsters for their refuse and must promptly haul off discarded materials. No materials are to be dumped down the trash chutes. *[House Rules §10.6]*
7. Contractors must hang protective pads if furniture, lumber, or other bulky items are to be moved between floors. No doors to the building or units are to be propped open unattended. *[House Rules §4.11]*
8. Contractors must give twenty-four (24) hours advance notice to the Resident Manager regarding any work that will be making excessive loud noise, such as the use of heavy equipment for jack hammering, tile cutting, and saw cutting.
9. No construction activity may be conducted in any common area on the property. No construction materials or items may be stored in the common elements. The cleaning of tools and equipment must

be done in the unit or off property. Unit sinks, tubs, showers and common element drains are not to be used for this purpose.

10. The Association will not coordinate deliveries or activities.
11. All power equipment must be operated indoors, unless otherwise approved in writing by the Association.
12. No radio or music may be played outside the unit. Radio, television and any music played inside the unit must be kept at a level not to be heard outside the unit or adjacent units. *[Bylaws §8.7(c); House Rules §4.2]*
13. Drinking alcoholic beverages or use of drugs on the job site is prohibited. Contractors must abide by House Rules and State regulations regarding smoking.
14. The Board, through its managing agent and/or Resident Manager, reserves the right to eject any worker who is determined by the Association to be engaging in any activity that violates the rules and regulations of the Association.

4.4 Contractor Safety Compliance

The contractor shall at all times comply with all applicable occupational safety and health requirements of any federal, State of Hawaii, or county authority having jurisdiction over the work — including the federal Occupational Safety and Health Administration (OSHA) and the Hawaii Occupational Safety and Health (HIOSH) division of the State Department of Labor and Industrial Relations — and with the safety regulations of any other regulatory body having jurisdiction. The owner is responsible for ensuring the contractor's compliance; the Association does not administer, interpret, or enforce occupational safety and health law.^{N27}

5 Working Hours

Working hours are 8:00 a.m. to 5:00 p.m. Monday through Friday, and 9:00 a.m. to 4:00 p.m. on Saturdays and on State and federal holidays. No loud construction or repair work — including drills, electric saws, and heavy construction — is permitted on Sundays or State or federal holidays. Work outside these hours requires prior written approval by the Resident Manager, except in case of emergency. *[House Rules §5.6; §10.7]*^{N20} Immediate fines may be assessed for non-compliant construction work or noise.

6 Debris

6.1 Containment

Demolition and construction debris must be contained within the unit or sealed within the lanai. The sealing must be removed each night and all debris removed unless prior written approval is obtained from the Board.

6.2 Cleaning

All debris must be removed from the premises by the owner and contractor at their expense. This includes demolition materials, appliances, furniture, and work materials. The Owner/Contractor must keep the walkways and common areas clean at all times. Debris dropped or spilled must be cleaned up immediately.

Any flammable debris must be removed from the unit at the end of each day's work. Hazardous materials must not be left on premises overnight.

No activity shall be engaged in and no substance be brought into or manufactured within any unit or building which might be in violation of the law or Bylaws of the Association or which might cause a cancellation or increase in the Association's insurance without the approval of the Board. *[Declaration §8(b)]*

6.3 Disposal

All debris must go to the landfill. Contractors are not permitted to use the trash disposal for construction debris. Small amounts of trash may be placed in the AOA dumpster only upon prior approval by the Resident Manager. *[House Rules §10.6]*

No paint or toxic fluids may be put in parking lot drain or dumpsters.

7 Water Shut-Off

An owner or the owner's contractor may shut off the water to the owner's own apartment at any time, at the owner's shut-off valve at the meter, without notice to the Resident Manager or anyone else. No one may shut off the water to another owner's apartment except at that owner's request. *[Robert Sutor Recommended — reflects longstanding NHOM practice]^{N21}*

8 Damage to Common Areas

The owner is responsible for the cost of repairs to any common areas that are damaged by the contractor. *[Declaration §5.4; Bylaws §8.2; §6.1(i)]*

Where a loss is covered by Association insurance, the Board has no claim against an owner except for the deductible, and then only if the loss was caused by the negligent or intentional act or omission of that owner or the owner's guests, tenants or licensees. *[Declaration §12.7; §13.1(g)]^{N22}*

9 Storage of Construction Materials

Materials used in construction may not be stored on the lanai without written authorization from the Resident Manager. Any items approved for storage on the lanai must be stored in a neat and orderly manner. If construction occurs on the lanais, construction sheets must be erected to seal the lanai and prevent dust, wood and other debris from escaping. *[House Rules §5.11.6; §7.7; Declaration §4.3(e)(viii), §4.3(f)(e), §5.1(e)]*

10 Use of Association Employees & Equipment

Contractors may not hire or use the services of Association employees, equipment, tools or facilities in the performance of their work. Contractors must use their own dollies and hand carts.

11 Compliance with Laws

The owner and contractor must comply with all laws, ordinances and building codes in conjunction with their work. *[Bylaws §8.7(d)]*

12 Fines

Violations of this Policy are subject to the fine schedule in the House Rules. The amounts, the notice sequence, and the process for contesting or appealing a fine — including notice and opportunity to be heard, mediation, payment, and collection — are governed by the House Rules and are not restated in this Policy. *[House Rules 20; Bylaws §6.1(o); HRS §514B-104(a)(11), §514B-146]*^{N23}

If Work is not completed in a timely manner and creates a hazardous condition or nuisance, the Association has the right, but not the obligation, to fine for uncompleted work and take all other legal action available to it.

13 Modification Request Application

Applications are made on the Association's **Modification Request Application**, issued separately as a fillable PDF:

NHOM_Unit_Modification_Request_Form_FILLABLE_DRAFT_v2026-07-26A.pdf

The form may be completed on screen in Microsoft Edge, Google Chrome, Adobe Acrobat or Reader, or Apple Preview, then saved, printed, or emailed. It may also be printed and completed by hand. Copies are available from the Resident Manager.

The Application requires the information listed in Section 3.1-Application, above, the contractor license number for each contractor, and the attachments listed on the form.^{N24}

Exhibit A — Do I Need Approval?

A quick guide only. Where this Exhibit and the Policy differ, the Policy governs. If your job isn't listed or you're unsure, ask the Resident Manager before you start. The Approval Category column refers to the five categories in Section 2-Approvals Required for the Work.^{N25}

Work	Approval Category	Licensed trade	Also required
Painting & finishes			
Interior painting	5 — none	No	Nothing, if not visible from outside
Flooring — ground floor	5 — none	No	—
Flooring — above ground floor	3 — Board	No	Board-approved carpet/padding, equal or better (Bylaws §8.3(g), as amended 2001)
Plumbing fixtures			
Faucet, replaced in place	5 — none	Plumber	No permit
Toilet, replaced in place	5 — none	Plumber	No permit, if the floor flange isn't disturbed
P-trap — failed and replaced on its own	5 — none	Plumber	Permit required (MCC 16.20C.101 §104.2(1))
P-trap replaced as part of a sink swap	5 — none	Plumber	No permit
Water heater	5 — none	Plumber	Permit as required by County; contractor confirms and obtains, owner verifies
Electrical			
Replace outlet, switch, or ceiling fan in place	5 — none	Electrician	Permit as required by County; contractor confirms and obtains, owner verifies
Move a switch or light fixture in place, not affecting the Association's wiring tie-in	5 — none	Electrician	Permit as required by County; contractor confirms and obtains, owner verifies
Install a new outlet or circuit within the unit, not affecting the Association's electrical tie-in	5 — none	Electrician	Permit as required by County; contractor confirms and obtains, owner verifies

Work	Approval Category	Licensed trade	Also required
Significant in-wall electrical — work in a shared or structural wall, or affecting the Association's electrical tie-in	3 — Board	Electrician	Application + plans; permit as required by County; contractor confirms and obtains, owner verifies
Bathroom exhaust fan — new or re-vented to outside	3 — Board	Electrician	Exterior penetration (Decl. §8(c); Bylaws §8.3(b))
Appliances			
Refrigerator	5 — none	No	Ice-maker water line = plumber
Microwave, replaced in place	5 — none	No	New outside venting → 3 — Board
Cooktop / stove — electric , in place	5 — none	No	—
Cooktop / stove — gas	5 — none	Plumber (gas)	Piped LP-gas; permit as required by County; contractor confirms and obtains, owner verifies
Oven, replaced in place	5 — none	Trade for the connection	—
Oven moved	3 — Board if new connections affect the Association's plumbing/electrical tie-in; otherwise 5 — none	Electrician / gas	New connections
Washer/dryer, replaced in place	5 — none	Trade if connections change	Vent to exterior → 3 — Board
Washer/dryer moved	3 — Board if new connections affect the Association's plumbing/electrical tie-in; otherwise 5 — none	Plumber + electrician	New connections
Cabinets & surfaces			
Cabinet repairs	5 — none	No	—
Cabinet replacement or modification	5 — none	No	Category 3 if it structurally changes plumbing, electrical or another common element
Countertop replacement	5 — none	Plumber for the sink reconnect	—

Work	Approval Category	Licensed trade	Also required
Structural & exterior			
Nonstructural partition — installed, removed or rearranged	4 — RM review	Trade if systems are touched	Modification Request + sketch to the Resident Manager, ≥30 days before work; RM confirms nonstructural, escalates to Board if structural or affecting shared systems
Removing or moving any wall	3 — Board	Yes	Application + stamped plans. Category 2 if it changes an apartment boundary
Anything visible from outside	3 — Board	—	Decl. §8(c)
Work touching a shared stack, riser, or service line	3 — Board	Yes	Common element (Decl. §4.3(f)(d), §5.1(d))
Work that jeopardizes soundness or safety, reduces value, or impairs an easement	1 — prohibited	—	Cannot be performed (HRS §514B-140(a))

Two rules that apply to everything above: plumbing and electrical work must be done by a State-licensed tradesperson **regardless of cost** — the \$1,500 threshold does not reach those trades; and your contractor pulls any permit, since Maui does not let owners pull plumbing or electrical permits — the owner verifies the contractor has obtained the required permits.

A "moved" fixture, appliance, or outlet is Category 3 only where the relocation affects the Association's plumbing or electrical tie-in (a new tie-in to Association service, a shared line, or in-wall work in a shared or structural wall); a minor relocation not affecting that tie-in is Category 5.

Categories 2 and 3 require the Modification Request Application with plans and specifications (Section 3-Approval Process).

Authority and Change Notes

For the Board and counsel. These notes record the authority analysis behind each provision and every change made to the original 2020 policy. They impose no requirement.

Change marking. The original 2020 policy text is preserved except as a note states otherwise. Five typographical errors carried over from the 2020 source were corrected ("alternation", "park at in spaces", "in the any common area", "may be accessed", and a duplicated "Association" in the Bylaws title). No requirement was changed by those corrections.

N1 — Adoption date — [Removed S25]. The page-one "Adopted December 28, 2020" line was removed as inconsistent with the document's status as a review draft not yet adopted by the Board. The 2020 adoption of the original policy remains a matter of Association record. (Note number retained to avoid renumbering the notes that follow.)

N2 — Rank of this Policy. Declaration §1.21 (*weak/supplementary*) defines "rules and regulations" as those adopted "as provided in the Bylaws" and so presupposes the delegation rather than making it; the operative grant is Bylaws §6.4 and §6.1(e). House Rules §1.5 (Precedence of Governing Documents) ranks the House Rules below the Declaration, Bylaws, the Act and Maui County Code; it does not address the rank of a Board policy relative to the House Rules, and no governing document expressly does. Where this Policy and the adopted House Rules differ, this Policy conforms to the House Rules as a matter of Board decision. **Board question: the authority basis for that conformance should be settled before adoption.**

N3 — Authority recital. *Correction — not in the original policy: the recital was incomplete.* Bylaws §6.4 ("Rules and Regulations" — verified) is a rules power only. The operative approval, enforcement and access authority for unit modifications sits in Bylaws §§8.3 and 8.4 (approval of alterations); §8.6 (Certain Work Prohibited — a prohibition plus a 75% owner-consent requirement, whose only Board-approval content is the proviso for nonmaterial additions and alterations); §6.1(e) (adoption and enforcement of rules); §6.1(o) (penalties and fines); §6.5 (abatement of violations); and §10.1 (right of access); together with Declaration §8(b) (soundness, disturbance, insurance, value) and §8(c) (prior written Board consent for anything visible from the exterior). HRS §514B-140 ("Additions to and alterations of condominium") — verified.

N4 — Mechanic's and materialman's liens. *Added — not in the original policy.* Bylaws §6.1(k) provides that where the acts or omissions of one or more Owners cause such a lien, those Owners are jointly and severally liable for the cost of discharging it.

N5 — "Resident Manager". *Corrected from "General Manager" throughout — not in the original policy.* "General Manager" appears nowhere in the Bylaws, the Declaration, or the House Rules. Bylaws §6.2 and §6.4 use "resident manager" and "managing agent"; House Rules §2.1 defines the Resident Manager and §1.2 identifies Molly Duncan. The closing direction of the original §1 — that all improvements must comply with Board-approved specifications and receive written Board approval before construction — was **replaced**, because it stated a blanket approval rule that does not conform to HRS §514B-140 and is contradicted by Section 2 and Exhibit A.

N6 — The approval categories. *Correction — not in the original policy: the statute establishes more than one approval track, and a single blanket Board-approval rule does not conform to it.* The original §2.2 stated that no owner shall undertake any Work "without first obtaining the written approval of the Board." Section 2 replaces that with the five categories.

(a) Nonmaterial additions and alterations — Board approval only. Under HRS §514B-140(c), nonmaterial additions to or alterations of the common elements or units — expressly including work made *within* a unit or within a limited common element appurtenant to and for the exclusive use of that unit — require approval only by the Board, which *shall not unreasonably withhold* approval.

"Nonmaterial" means work that does not jeopardize soundness or safety, reduce value, impair an easement, detract from the appearance of the project, interfere with or deprive any nonconsenting owner of use or enjoyment, or directly affect any nonconsenting owner. Category 3's "what falls here" entry was revised (S25) to state its scope positively — work affecting structure, shared building systems, or the project's appearance — rather than reciting this negative "nonmaterial" test, which described Categories 3, 4 and 5 alike and read against the very items Category 3 lists (interior load-bearing walls; pipes, wires, ducts or conduits serving more than one apartment). The statutory "nonmaterial" basis is retained here and in the §514B-140(c) citation.

(b) Work permitted without Board approval, on Resident-Manager review. Bylaws §8.3(g) permits owners, without consent, to install, remove and rearrange non-structural partitions within their Apartments, subject to thirty (30) days' prior written notice with plans and specifications. Category 4 (revised S24) implements this as a Modification Request and sketch filed with the Resident Manager at least 30 days before work: the Resident Manager confirms the work is genuinely nonstructural and within the Bylaws guidelines — the determination being the Association's, not the owner's, consistent with §8.3(g)'s reservation of the adverse-effect determination to the Board — and escalates to Board approval (Category 3) any work that is structural or that affects restricted or shared elements. Plumbing/electrical fixture changes that do not affect the Association's tie-in are Category 5; those that do are Category 3.

(c) Material additions and alterations — owner vote required. Under HRS §514B-140(b), a material addition or alteration requires the written consent of **sixty-seven per cent (67%) of the unit owners**, the consent of **all** unit owners whose units or appurtenant limited common elements are directly affected, **and** Board approval, which shall not unreasonably withhold. The Board cannot substitute its own approval for the owner vote. Declaration §19 (2007 Amendment) sets 67% by two distinct routes: §19(c) requires 67% for **amendments** to the Declaration and Bylaws, including amendments relating to alteration of the Project; §19(d) reduces the **75% approval requirement for alterations to the common elements** to 67%. It is §19(d), not §19(c), that supersedes the original 75% alteration threshold.

(d) Boundary or map changes. Work that changes an Apartment boundary or converts Apartment space into common or limited common elements (or the reverse) is a material amendment requiring a recorded Declaration amendment and mortgagee approval — Declaration §16.4(f), (g); Bylaws §8.4(d).

(e) Scope of "Work" carried forward from the original §2.2. Work includes butting, scoring, cutting, drilling into or chiseling into any common element, including interior load-bearing walls, and any activity that removes, adds or alters anything structurally other than what is currently installed in the unit or on the lanai — Declaration §4.3(f) excludes load-bearing and structural components of perimeter, interior

and party walls from the unit, and §5.1(c) makes them common elements. Work includes anything that would alter the outside appearance of the unit or building — Bylaws §8.3(a)–(d) is the operative authority; Declaration §8(c) (*weak/supplementary*) bars displaying a sign or placing any other thing in or upon doors, windows or walls so as to be visible from the exterior, which reaches placed objects and signage rather than alterations of appearance. Work includes moving the washer/dryer and altering plumbing lines and electrical conduits — Declaration §4.3(f)(d) and §5.1(d) make pipes, wires, ducts and conduits serving more than one Apartment common elements even where they run inside a unit. Tiling and cabinets inside the unit are excluded unless they structurally change plumbing, electrical or other common elements.

N7 — Flooring above the ground floor. *Added — not in the original policy.*

N8 — Modifications for persons with disabilities. *Added — not in the original policy.* Bylaws §8.5 requires the Association to permit an owner with a disability to make reasonable modifications at the owner's expense, including the cost of any required bonds. Declaration §9 (*weak/supplementary*) grants reasonable **exemptions from** the Declaration, Bylaws and rules rather than a modification right, but it does supply the exterior-approval-at-the-applicant's-expense rule.

N9 — Solar energy devices. *Resolved to conform to adopted House Rules Section 13.13-Solar Energy Devices (prior written Board consent under HRS §514B-140(c)(1)); the original policy had none.* Bylaws §8.3(e) states flatly that "Exterior solar panels shall be prohibited." HRS §196-7 (*weak/supplementary*) — subsections (a) and (c) apply to a "single-family residential dwelling or townhouse," which NHOM's 40 apartments in six multi-story buildings are not; the preemption argument rests on HRS §514B-140(c)(1) alone. The Bylaws prohibition is therefore likely preempted and probably unenforceable as written; §8.3(e) is to be addressed in the pending Bylaws amendment work rather than relied on.

N10 — Stamped drawings. Bylaws §8.3(g) requires plans and specifications prepared by a licensed Hawaii architect or engineer only **if** the proposed alteration involves installing, maintaining, removing or rearranging partitions and/or plumbing, electrical or other fixtures attached to the ceilings, floors and walls. Section 3.1(a) was revised (S24) to conform: stamped drawings are required only where the Work is structural, affects load-bearing walls or Project systems, or where the Board reasonably requires them, rather than for every application. It remains a Board rule under §6.4 and §6.1(e).

N11 — Insurance and bonding. Items (d) and (e) are Board-adopted rule requirements under Bylaws §6.4 and §6.1(e). The Bylaws themselves impose no owner or contractor insurance or bonding requirement; Bylaws §8.5 refers to bonds "required by the Declaration, these By-Laws or the Act." Retaining them is within the Board's rule-making power, but they are rules, not Bylaws mandates. As revised (S24), items (d) and (e) apply to Category 2 and Category 3 modifications only, the coverage amounts are set by the Board (the former fixed \$1,000,000 liability figure was removed), and the Board may require the Association be named as an additional insured on the contractor's liability policy (the former §4.2 Certificate of Insurance provision, now consolidated here).

N12 — "Sole discretion" removed. *Correction — not in the original policy.* The original read "as, in its sole discretion, it believes necessary." That overstates the Board's latitude: HRS §514B-140(b) and (c) both provide that the Board "shall not unreasonably withhold" approval. Bylaws §8.3(a), by contrast, expressly commits the professional-review determination to the Board "in its sole discretion", so it does not limit the Board here; the limit rests on HRS §514B-140(b)–(c) alone.

N13 — Ten-day notice of cost — [Removed S24]. The ten-day advance-notice-of-cost provision was removed from Section 3.2. HRS §514B-105(d) (*weak/supplementary*) addresses **information requests** and expressly excepts costs incurred in enforcement proceedings; modification-review and inspection charges under Bylaws §8.3(a) are a different category, so the provision rested on no statutory basis and was dropped as adding friction without support. (Note number retained to avoid renumbering the notes that follow.)

N14 — Approval standard. HRS §514B-140(b), (c) — approval "shall not unreasonably [be] withh[e]ld." The Board retains the right under §514B-140(b) to disapprove work it reasonably determines could jeopardize soundness or safety, impair an easement, or interfere with or deprive a nonconsenting owner of use or enjoyment.

N15 — Advance notice of start, and inspection during construction. *Added at the direction of the Board President (Robert Sutor Recommended) — not in the original policy.* Inspection right: Bylaws §10.1; Declaration §6(c). This Policy provides for inspection during the work, not only on completion.

N16 — Limits on stop-work and abatement. *Correction — not in the original policy.* The Bylaws do not grant an unrestricted administrative stop-work power. Bylaws §6.5(a) permits the Board to enter and summarily abate a condition **only** where the violation threatens an immediate, substantial and undeniable threat to life, limb or property; otherwise the Board's remedy under §6.5(b) is to enjoin, abate or remedy the breach by appropriate legal proceedings, with costs and attorneys' fees payable by the defaulting Owner. A direction to stop work outside the §6.5(a) circumstances operates as a rule enforcement measure — backed by the fine schedule and, if necessary, legal proceedings — not as a self-executing right of entry.

N17 — Contractor licensing. *Revised — not in the original policy.* The original section reproduced an explanation of HRS Chapter 444 and the "handyman" exemption, and stated that the exemption "does not apply ... for electrical and plumbing work." That statement misattributed the law: the \$1,500 exemption in HRS §444-2(4) is dollar-based and contains no trade carve-out; the electrical/plumbing carve-out belongs to the separate owner-builder exemption at §444-2.5(a)(2). Rather than restate licensing law the Association does not administer, this section states only what the Association requires and does. See NHOM_Legal_Reference_Statutes §2.9 for the verified statutory text. HRS §444-2(4) also makes the exemption unavailable where a building permit is required, regardless of contract price, and where work is divided into smaller contracts to evade the chapter. House Rules §10.2 (*weak/supplementary*) adopts the same \$1,500 threshold but only for work "performed by someone other than the owner of the unit". The Association's requirement is a Board rule and does not depend on the House Rules carve-out.

N18 — License verification link. State DCCA PVL public license search — confirmed live 2026-07-26.

N19 — Contractors' pets. House Rules §8.1 (*weak/supplementary*) — the prohibition excepts fish and other aquarium animals and, notwithstanding anything to the contrary, service, comfort, emotional-support and assistance animals under HRS ch. 515, HAR §12-46-306 and the federal Fair Housing Act. Those exceptions do not reach contractors' pets, so the rule stands.

N20 — Working hours. *Correction — not in the original policy: the hours in the original were narrower than the adopted House Rules, which take precedence.* Adopted House Rules §5.6 permits

work on apartments 8:00 a.m.–5:00 p.m. Monday through Friday **and 9:00 a.m.–4:00 p.m. on Saturdays and on State and federal holidays**, as of right. Adopted House Rules §10.7 bars work before 8:00 a.m. or after 5:00 p.m. and bars *loud* construction work on Sundays and State or federal holidays. This Policy conforms its hours to the adopted House Rules. The two adopted provisions also conflict with each other on holiday work; this Policy resolves them into a single schedule (Mon–Fri 8–5; Sat 9–4; Sundays and State/federal holidays — no work). Until this Policy is adopted, §5.6 and §10.7 govern. **Board question: as with N2, the authority basis for a Board policy conforming to the House Rules should be settled before adoption.**

N21 — Water shut-off. Shutting off water to one's own apartment has long been the owner's prerogative at NHOM; Section 7 states that practice — the owner or the owner's contractor may do it at any time at the owner's meter valve, without notice. The only limit is that no one shuts off water serving another apartment without that owner's request.

N22 — Limit on recovery for insured loss. *Added — not in the original policy.* Declaration §12.7 (Waiver of Subrogation) provides that where a loss is covered by Association insurance, the Board has no claim or cause of action against an owner except for the deductible, and then only if the loss was caused by the negligent or intentional act or omission of that owner or the owner's guests, tenants or licensees. Declaration §13.1(g) contains a mutual release of claims to the same effect.

N23 — Fines consolidated. *Revised — not in the original policy.* Fines, and the process for contesting or appealing a fine, are consolidated in the House Rules and are no longer stated here. The prior text restated the full fine schedule and the statutory appeal, mediation, no-lien and cost provisions; two copies of a schedule drift, and they already had.

N24 — Application no longer embedded. *Changed.* The Application was previously reproduced as Appendix A; it is now issued as a separate fill-in-on-screen PDF so owners can complete it on a computer, in a browser, or in any PDF tool, and so the form can be revised without re-issuing the Policy.

N25 — Exhibit A. *Added — not in the original policy.* A quick-reference schedule of common jobs. The Category column was added in S23 so the Exhibit and Section 2 use the same vocabulary; the original Exhibit carried a binary Board-approval Yes/No and had no notice-only tier. The four formerly-*[confirm]* permit cells (water heater, in-place electrical replacement, new/moved outlet, and piped gas) were reconciled in S24 to the Policy's permit principle — the contractor confirms and obtains any required County permit and the owner verifies — rather than the Association asserting per-row permit determinations it does not administer. Category assignments were also conformed to the S24 revisions (Category 4 = non-structural partitions on Resident-Manager review; a moved fixture, appliance or outlet is Category 3 only where the relocation affects the Association's tie-in).

N26 — Indemnification. *Added S24.* A condition of Board approval for Category 2 and Category 3 modifications (Section 3.4): the owner agrees in writing to indemnify, defend and hold harmless the Association, Board, managing agent and Resident Manager for claims arising from the Work. Supported by the owner-responsibility grants Bylaws §2.3 and §8.2 and modeled on the Bylaws' existing owner indemnification for service animals. Not imposed on Category 4 or 5 work, where the general responsibility provisions of Section 1 continue to apply.

N27 — Contractor safety compliance. *Added S24.* Section 4.4 requires the contractor to comply with applicable occupational safety and health law — federal OSHA and, as the state-plan authority for Hawaii, the Hawaii Occupational Safety and Health division (HIOSH) of the State Department of Labor and Industrial Relations (verified against labor.hawaii.gov/hiosh, 2026-07-29) — with the compliance obligation on the contractor and the owner, and an express disclaimer that the Association does not enforce safety law.

N28 — Termite and powderpost beetle treatment. *Added — not in the original policy; recommended by the Resident Manager in the House Rules Comments Review (Section 4.1).* Untreated wood, millwork, cabinetry, and wood-framed furnishings can introduce termites and powderpost beetles into shared wood framing, placing other apartments at risk. The obligation is placed in Section 3-Approval Process — binding the owner and enforceable at inspection under Section 3.3-Approval & Inspection — rather than in Section 4-Contractors, because it binds the owner rather than the contractor. Documentation from a licensed pest-control operator is required so the requirement is verifiable at inspection. The cost falls on the owner introducing the risk. Adopted as a Board rule under Bylaws §6.4 and §6.1(e).